Legislation, Privacy and Confidentiality

Privacy

Privacy Act 1988 (Cth)

"Promotes and protects the privacy of individuals and regulate how
Government agencies and organisations handle personal information."

"How organisations are required to protect the personal information that is collected and stored about individuals."

- Office of the Privacy Commissioner (2000)
- Coverage to Private Sector (2001)
- The Office of the Australian Information Commissioner (2010)
- Australian Privacy Principles (2014)
- Notifiable Data Breaches Scheme (2018)

Privacy Act Provisions

• Schedule 1 – Australian Privacy Principles
• Formalised in the 2014 revision of the Privacy Act 1988 (Cth)
• 13 Privacy Principles
• Not all Privacy Principles will be relevant to healthcare
• s13 – Interferences with Privacy (Privacy Breaches)
• Each State and Territory has adopted these provisions and included them into their own State and Territory Acts.
• s6FA Meaning of Health Information (personal information)

APP1

- Open and transparent management of personal information

APP3

- Collection of solicited personal information

APP5

- Notification of the collection of personal information

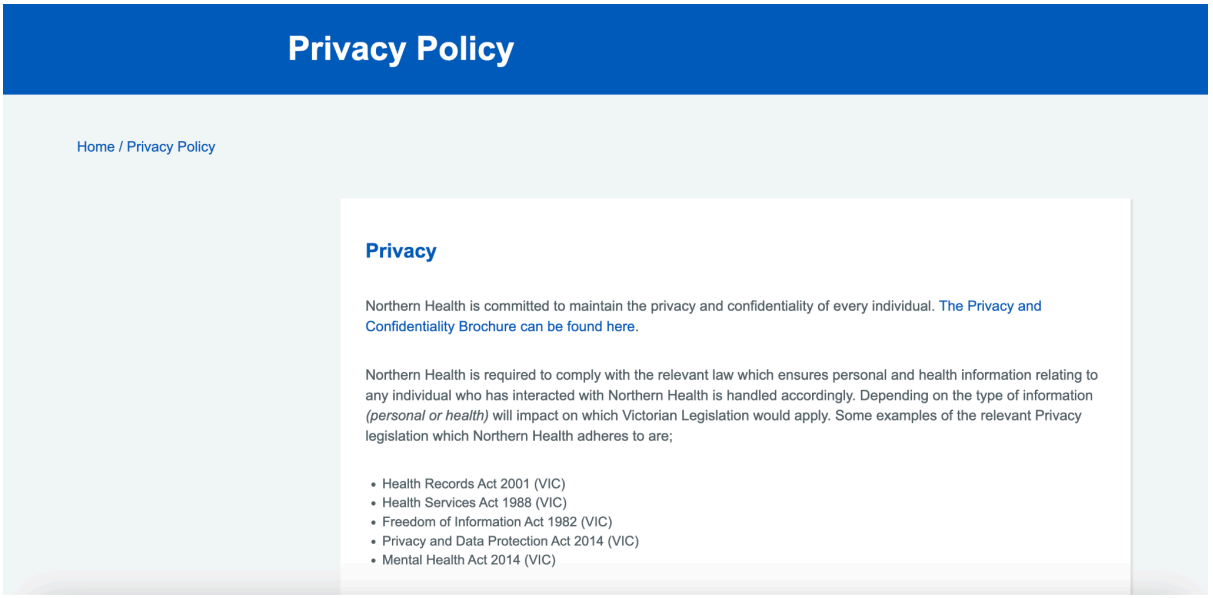
APP6

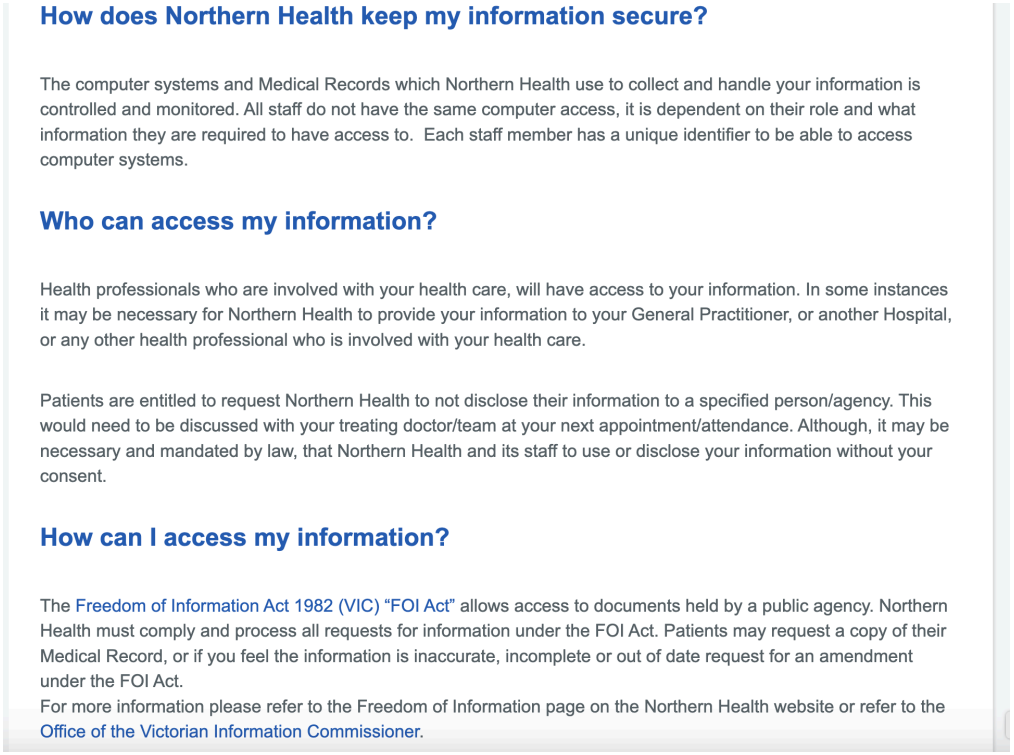
- Use or disclosure of personal information

APP11

- Security of personal information

Privacy Policies





How does Northern Health keep my information secure?

The computer systems and Medical Records which Northern Health use to collect and handle your information is controlled and monitored. All staff do not have the same computer access, it is dependent on their role and what information they are required to have access to. Each staff member has a unique identifier to be able to access computer systems.

Who can access my information?

Health professionals who are involved with your health care, will have access to your information. In some instances it may be necessary for Northern Health to provide your information to your General Practitioner, or another Hospital, or any other health professional who is involved with your health care.

Patients are entitled to request Northern Health to not disclose their information to a specified person/agency. This would need to be discussed with your treating doctor/team at your next appointment/attendance. Although, it may be necessary and mandated by law, that Northern Health and its staff to use or disclose your information without your consent.

How can I access my information?

The Freedom of Information Act 1982 (VIC) "FOI Act" allows access to documents held by a public agency. Northern Health must comply and process all requests for information under the FOI Act. Patients may request a copy of their Medical Record, or if you feel the information is inaccurate, incomplete or out of date request for an amendment under the FOI Act.
For more information please refer to the Freedom of Information page on the Northern Health website or refer to the Office of the Victorian Information Commissioner.

Privacy Breaches

What is a reportable eligible data breach?

"An eligible data breach happens if:
(a) there is unauthorised access to, unauthorised disclosure of, or
loss of, personal information held by an entity; and
(b) the access, disclosure or loss is likely to result in serious harm
to any of the individuals to whom the information relates."
Privacy Act 1988 (Cth) s26WA

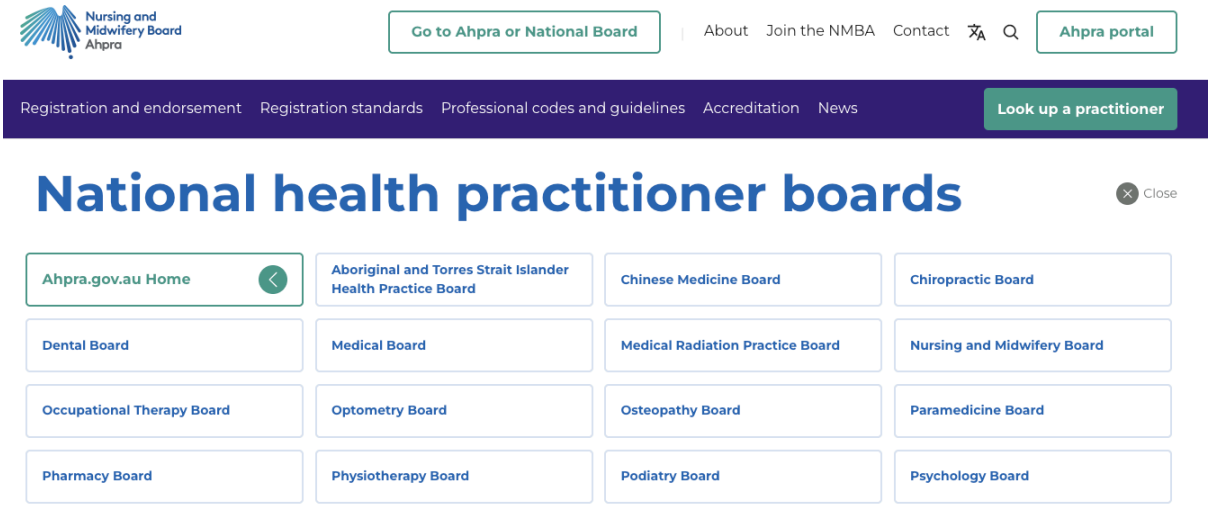
Standards and Professional Ethics

National Safety and Quality Health Service Standards

- Australian Commission on Safety and Quality in Health care
- 2021 (Second Edition)

- Clinical Governance Standard
- Patient safety and Quality Systems
- Policies and Procedures 1.07
  - Have policies and procedures in place
  - Monitor and review compliance of legislation, regulation and jurisdictional protocols
- Healthcare Records 1.16
  - (C) Comply with security and privacy regulations

Professional ethics



Code of Conduct Nurses (2018)

3.5 Confidentiality and privacy

Nurses have ethical and legal obligations to protect the privacy of people. People have a right to expect that nurses will hold information about them in confidence, unless the release of information is needed by law, legally justifiable under public interest considerations or is required to facilitate emergency care. To protect privacy and confidentiality, nurses must:

a. respect the confidentiality and privacy of people by seeking informed consent before disclosing information, including formally documenting such consent where possible

b. provide surroundings to enable private and confidential consultations and discussions, particularly when working with multiple people at the same time, or in a shared space

c. abide by the NMBA's Social media guidance and relevant standards for practice, to ensure use of social media is consistent with the nurse's ethical and legal obligations to protect privacy

d. access records only when professionally involved in the care of the person and authorised to do so

e. not transmit, share, reproduce or post any person's information or images, even if the person is not directly named or identified, without having first gained written and informed consent. See also the NMBAs' Social media guidance and Guidelines for advertising regulated health services

f. recognise people's right to access information contained in their health records, facilitate that access and promptly facilitate the transfer of health information when requested by people, in accordance with local policy, and

g. when closing or relocating a practice, facilitating arrangements for the transfer or management of all health records in accordance with the legislation governing privacy and health records.

- Aboriginal and Torres Strait Islander Health Practice
- Chinese medicine
- Chiropractic
- Dental
- Medical radiation practice
- Occupational therapy
- Optometry
- Osteopathy
- Paramedicine
- Pharmacy
- Physiotherapy
- Podiatry

3.3 Confidentiality and privacy

You have ethical and legal obligations to protect the privacy of patients. Patients have a right to expect that you will hold information about them in confidence, unless the release of information is required or authorised by law[15], or is required to facilitate emergency care.

To protect privacy and confidentiality, good practice includes that you:

a. respect the confidentiality and privacy of patients by seeking informed consent before disclosing information, including formally documenting such consent where possible
b. provide surroundings to enable private and confidential consultations and discussions, particularly when working with multiple people at the same time, or in a shared space
c. never access records when not professionally involved in the care of the person and/or authorised to do so
d. ensure that all staff are aware of the need to respect the confidentiality and privacy of patients, and refrain from discussing patients in a non-professional context
e. be aware of the requirements of the privacy and/or health records legislation that operate in the relevant states or territories, and apply them to information held in all formats, including electronic information[16]
f. be aware that there are complex issues relating to genetic information, and seek appropriate advice about disclosure of this information
g. do not transmit, share, reproduce or post any person's information or images, even if the person is not directly named or identified, without first getting written and informed consent. See also the Social media guidance on Ahpra's website
h. recognise a patient's right to access information contained in their health records, help them access it, and promptly facilitate the transfer of health information when requested by the patient, in accordance with local policy, and
i. facilitate arrangements for the transfer or management of all health records in accordance with the legislation governing privacy and health records, when closing or relocating a practice.

Psychology Board Code of Conduct

3.3 Privacy and confidentiality

Psychologists have ethical and legal obligations to protect the privacy of clients. Clients have a right to expect that you will hold information about them securely and in confidence, unless the release of information is required or authorised by law or is required to facilitate emergency service provision.[7]

To protect privacy and confidentiality, you should:

a. seek informed consent in relation to information handling. Effective practice includes the following:
   i. At the beginning of a service and thereafter as necessary, clients and, where relevant, associated parties should be adequately informed about the limits of confidentiality and likely uses of the information generated whilst providing the service.
   ii. Before collecting information from clients, they should be adequately informed about how their personal information will be recorded, stored and used.
   iii. Before disclosing information from clients, they should be adequately informed about the nature and purpose of the disclosure.
   iv. Obtain consent from clients before disclosing information that was gained about them through one role or relationship in any other role or relationship.

Engineers Australia

1 Demonstrate integrity

1.1 Act on the basis of a well-informed conscience

a) be discerning and do what you think is right

b) act impartially and objectively

c) act appropriately, and in a professional manner, when you perceive something to be wrong

d) give due weight to all legal, contractual and employment obligations

e) act within your area of expertise

1.2 Be honest and trustworthy

a) accept, as well as give, honest and fair criticism

b) be prepared to explain your work and reasoning

c) give proper credit to those to whom proper credit is due

d) in managing perceived conflicts of interest, ensure that those conflicts are disclosed to relevant parties

e) respect confidentiality obligations, express or implied

f) do not engage in fraudulent, corrupt, or criminal conduct

1.3 Respect the dignity of all persons

a) treat others with courtesy and without discrimination or harassment

b) apply knowledge and skills without bias in respect of race, religion, gender, age, sexual orientation, marital or family status, national origin, or mental or physical abilities

Assessment 2

Electronic Patient Journey
Boards and Privacy

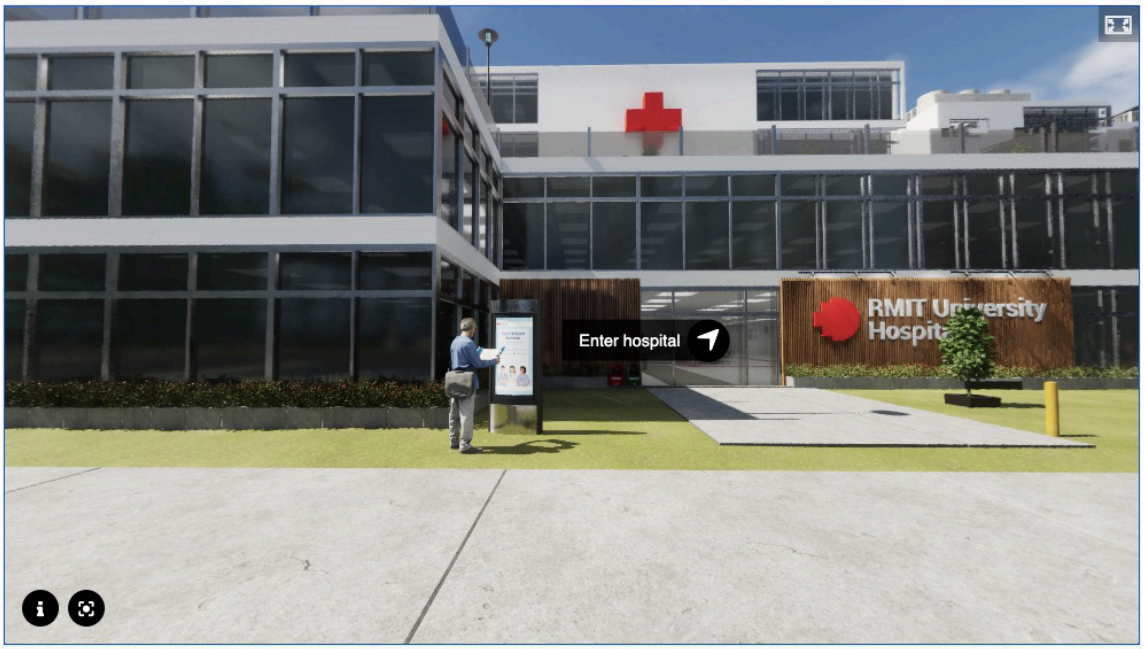
What are Electronic Patient Journey Boards?

“The Electronic Patient Journey Board (EPJB) displays information
on a large screen about every patient on a ward. It is a communication tool designed to ensure all members of the healthcare team are aware of a patient’s status at any given time
on any given day, and that the team is proactively planning for an
agreed treatment plan and discharge date for every patient.”
QLD Health 2025
“https://clinicalexcellence.qld.gov.au/improvement-exchange/electronic-journey-board”

Module 5.3

Explore the RMIT University Health Precinct and Find the ePJB.

Let's explore the virtual hospital! Enter the RMIT University Health Precinct, interact with the ePJB, watch videos along the way, and find your way to Ward 2A, where the ePJB is located behind the nurse's station.
Reflect on issues related to the placement of the ePJB in its current location and its implications for clinicians and consumers. Have fun, and be sure to pay close attention to the navigation instructions in this virtual space.



Assessment 2 - Overview

• Complete Module 5.3 and familiarise yourself with the Electronic
Patient Journey Board (EPJB)
• Undertake the Virtual Reality RMIT University Hospital tour
• Pay particular attention to the EPJB location
• Watch the videos for each location
• Take note as to how each is positioned
• Are some locations better than others?

What to consider?

• Think about

- Privacy Act 1988 (Cth)
- Australian Privacy Principles
- National Safety and Quality Health Service Standards
- Codes of Conduct (AHPRA)
- Only consider the Federal / National Laws rather than Victorian
or New South Wales
- Assume the Federal Law ‘outranks’ them all!
- Does the current placement of the EPJB breach any standard?
- Review the “Overview of the Assessment”

Consider

- What type of information is displayed on an electronic patient journey board?
- Is it general patient information or more personal / identifiable information?
- What is the relevance of some of the concerns that people are raising with regards to the EPJB location?
- Why is privacy and confidentiality important issues in healthcare and does this differ between clinicians and patients?
- What are the underlying frameworks or legislation that healthcare organisations need to be aware of with regards to privacy and confidentiality?
- What policies may healthcare organisations put in place to support patients right to privacy and confidentiality?

Marking Criteria

- Discussion on the issues being raised
- Ability to identify the relevant privacy provisions that may apply
with respect to the issues raised

• Clarity and depth of the issues raised and provide examples of
how any privacy provisions that are relevant would be applied
• Provide a recommendation based on the evaluation as to a new
location for the EPJB
• Language and Grammar is appropriate
• Referencing
• Quality versus Quantity
• More quality will increase marks (see rubric)

Assessment 2

• Individual written - 1500 words (+/- 10%)
• Worth 30% of total grade
• Due Sunday 20 September 2026 at 2330hr
• Late submissions – penalty 10% per day or part thereof
• Submit a Word document only (DOC or DOCX)
• Academic Paper
• Headings and subheadings
• Referencing
• Use any style but ensure it is consistent